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CASE #	CASE NAME	HEARING NAME
CVRI2502257	ORELLANA VS COMMUNITY CARE REHAB CENTER	MOTION TO COMPEL ARBITRATION BY COMMUNITY CARE REHAB CENTER

Tentative Ruling:

Moving party: Defendant Community Care Rehab Center, LLC dba Community Center and Rehabilitation Center

Responding party: Plaintiff Oralía Orellana

This is an elder abuse matter. Oralía Orellana (“Plaintiff”) was a resident at Community Care Rehab Center, LLC dba Community Center and Rehabilitation Center’s (“Defendant”) skilled nursing facility. When she became a resident, she was 77 and had multiple health issues including vascular dementia, complex partial seizure disorder, diabetes, heart issues, and incontinence. It is alleged that Defendant failed to provide safe supervision during her time at Defendant, including failing to implement fall-prevention strategies. This resulted in Plaintiff falling and suffering blunt force trauma to her back, chest, and hip and a fracture to her head, left fibula, and left tibial plateau. The complaint asserts the following causes of action: (1) elder abuse, (2) negligence, and (3) violation of resident rights.

Defendant brings this motion. It seeks to compel Plaintiff to arbitration. It argues that Plaintiff signed an arbitration agreement shortly after she was admitted to the facility. It contends Plaintiff’s claims fall within this agreement. It argues the agreement is governed by the Federal Arbitration Act (“FAA”).

In opposition, Plaintiff argues that Defendant fails to properly authenticate the electronic signature in the arbitration agreement. Plaintiff contends that her primary language is Spanish and the arbitration agreement is in English. She also asserts that she lacks the cognitive ability to execute the agreement, which is why she has an attorney-in-fact. She contends that the assertion that the arbitration was explained to her and her attorney-in-fact is false and the dates identified by Defendant are inconsistent. Plaintiff asserts that she lacks resources to pay for arbitration.

In reply, Defendant asserts that it has sufficiently authenticated Plaintiff’s signature. It contends that Plaintiff has failed to establish that she lacks capacity to sign the agreement. It argues that the date inconsistencies provided in declarations do not create a genuine dispute regarding contract formation.

Analysis:

The court must grant a petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP §1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. R. Ct. 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) “[U]nder this rule, unless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision.” (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) A petitioner is not required to authenticate the respondent’s signature on an arbitration agreement as a preliminary matter in the moving papers and is only required to do so if the signature is challenged. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

Defendant has provided an arbitration agreement it contends is electronically signed by Plaintiff. The arbitration agreement is between Plaintiff and Defendant. It applies to all disputes between Plaintiff and Defendants that relate to the provision of care, treatment, and services provided to Plaintiff. (Arbitration Agreement, ¶ 2.1.) The scope of the arbitration agreement would cover Plaintiff's claims. Plaintiff challenges the authenticity of the electronic signature.

Under Civil Code § 1633.9(a), "An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." "[A] party may establish that the electronic signature was 'the act of the person' by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 545.) In *Ruiz*, *supra* 232 Cal.App.4th at 843-846, the court found that a generic assertion alone that the electronic signature belonged to the plaintiff was not sufficient.

All Defendant has is a generic assertion that Plaintiff signed the agreement. It does not walk through how an electronic signature occurs and the protocol put in place to ensure that the Plaintiff signed the agreement. In opposition, they assert that they are not required to do so because Ruben Arroyo's declaration establishes Plaintiff signed the agreement. His declaration does not establish this. Mr. Arroyo states that he explained the agreement to Plaintiff and her attorney-in-fact on 6/8/24. (Declaration of Ruben Arroyo, ¶ 4.) The explanation occurred on 6/8/24 and Plaintiff allegedly signed the agreement on 6/11/24. (Declaration of Jason Varley, Exhibit A.) Mr. Arroyo does not state in his declaration that he witnessed Plaintiff execute the arbitration agreement. He simply asserts that her electronic signature is found on the arbitration agreement. (Declaration of Ruben Arroyo, ¶ 5.) Plaintiff's attorney-in-fact, Graciee Cifuentes Orellana, provides a declaration that states that she did not witness anyone explain an arbitration agreement to Plaintiff (her grandmother). (Declaration of Graciee Cifuentes, ¶ 12.) She states that she never witnessed Plaintiff sign any documents at the facility. (*Id.* at ¶ 14.) She provides that this would be out of the norm for Plaintiff to sign any paperwork because she is Plaintiff's attorney-in-fact and she routinely signed admission paperwork and other documents that required Plaintiff's signature. (*Id.* at ¶ 14.) Due to this, Defendant has failed to establish that Plaintiff electronically signed the agreement.

The motion to compel arbitration is denied.

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CASE #	CASE NAME	HEARING NAME
CVRI2505919	MARSHALL VS AMERICAN CREDIT ACCEPTANCE	MOTION TO COMPEL ARBITRATION BY AMERICAN CREDIT ACCEPTANCE

Tentative Ruling:

This motion is unopposed. Accordingly, the motion to compel arbitration is granted. Moving party to give notice of ruling. Any future dates on calendar in this matter will go off calendar and the matter is stayed pending completion of arbitration.